

IN THE FAMILY COURT AT MUMBAI

PETITION No. (petition no.) / 2017

IN THE MATTER OF

NAME: Priya Mehta

AGE: 39

OCCUPATION: Doctor

ADDRESS: 5678, South City, Gurgaon

Mobile No.: 8765432109

Email ID: priya.mehta@example.com

AND

NAME: Ravi Kumar

AGE: 39

OCCUPATION: Lawyer

ADDRESS: 3456, Jubilee Hills, Hyderabad

Mobile No.: 6543210123

Email ID: ravi.kumar@example.com

A Petition For divorce by mutual consent U/s

(SPECIFY UNDER WHICH ACT, whether)

U/S 13B Of Hindu Marriage Act

Or

U/S 28 Of Special Marriage Act

Or

U/S 10 A Of Divorce Act

The petitioner above named submits this petition praying to state as follows;

1. That the petitioners were married to each other at (marriage date) on Dated (marriage date) according to the (ceremonies) rites and customs/ceremonies. Or before the Marriage Registrar (city of marriage)

2. That the Priya Mehta before marriage wasand Ravi Kumar was

- **State the pre- marital status of the parties whether bachelor/spinster/divorcee/widow/widower.**
- **Mention the maiden name of the wife.**
- **Mention the religion and domicile of the parties**
- **Clearly mention the date since when the parties are staying separately**

3. State the number of children. Their names and age/ date of birth and custody.

4. State the details about pending litigation. Under which section, Act, case number and court. Next date fixed before the competent court.

5. State the details about joint immovable property, if any.

6. CONSENT TERMS

The consent terms must include what the parties decided about

- **The permanent alimony,**
- **Custody and access of children,**
- **Division of property/ execution of any regd document in respect of immovable property Exchange of articles/jwellery/utencils etc,**
- **Withdrawal of pending litigations, and**
- **Any other term to which the parties are consenting**

7. That the petitioners due hereby declare and confirm that this petition preferred by them is not collusive.

8. That there is no coercion, force, fraud, undue influence, misrepresentation etc. in filing the present petition, and our consent is free.

9. That there is no collusion or connivance between the parties in filing this petition.

10. That this Court has jurisdiction to try and decide this petition as Mention clearly how this court has jurisdiction.

- **Whether the marriage was solemnized at Mumbai.**
- **That the parties lastly stayed together at Mumbai.**
- **The wife is staying at Mumbai.**
- **Any other reason supported by document.**

11. That the court fee of Rs. 100 is affixed.

12. The petitioners will rely upon the documents, a list whereof is annexed herewith.

13. The petitioners pray that;

a) This Hon'ble court be pleased to dissolve the marriage between the petitioners, solemnized on (complete divorce) by the decree of divorce by mutual consent under section (IPC Section)

b) Such other and further relief's as this Hon'ble Court may deem fit and proper in the nature and circumstances of the case;

VERIFICATION

I Priya Mehta age 39 years, residing at Gurgaon the petitioner no. 1 do hereby solemnly declare that what is stated in the foregoing paragraphs of the petition is true to best of my own knowledge and belief save and except for the legal submission.

Solemnly Declared at (date)

On this (date)

Signature of the petitioner no. 1

Advocate

I Ravi Kumar age 39 years, residing at Hyderabad. The petitioner no.2 do hereby solemnly declare that what is stated in the foregoing paragraphs of the petition is true to best of my own knowledge and belief save and except for the legal submission.

Solemnly Declared at (date)

On this (date)

Signature of the petitioner no. 2

Advocate

Documents to be attached: -

➤ ID proof of both the parties

(Copy of Pan Card/ Driving license /Adhar Card / Election Card/ Passport).

➤ Marriage proof

(Marriage Registration Certificate/ Invitation Card/ Marriage Photograph/

Affidavit of blood relative) (Minimum two documents mandatory).

➤ Residential proof

(Passport/ Adhar Card/ Election Card/ any other permissible document).

Additional Documents if required:-

- Birth Certificate of minor child.
- Registered document for transfer of property.
- Copy of receipt if articles, jewellery, or utensils are exchanged.